LEGAL TESTAMENTARY INSTRUMENT

GOVERNED BY THE INDIAN SUCCESSION ACT, 1925 & HINDU SUCCESSION ACT, 1956

LAST WILL AND TESTAMENT

(Formal Testamentary Disposition under Indian Succession Law)

I, **RAMESH SHARMA**, son of Late Shri Kailash Sharma [Identity Document: PAN Card Ending in XXXX-521M], residing at **Flat 402, Sai Balaji Residency, Madhapur, Hyderabad, Telangana, PIN: 500081**, born on **15/08/1976**, professing **Hindu** faith, being of sound disposing mind, memory, and understanding, having read over and fully understood the contents hereof in a language known to me and having approved the same, and acting of my own free choice, volition, and without any coercion, undue influence, fraud, or misrepresentation from any person whatsoever, do hereby make, publish, and declare this writing to be my **Last Will and Testament**, executed at **Hyderabad**, India.

SECTION I REVOCATION OF ALL FORMER WILLS & CODICILS

I hereby revoke, cancel, and annul all prior Wills, Codicils, Testaments, and testamentary dispositions of every nature whatsoever made by me at any time heretofore, and declare this to be my sole, exclusive, and operative Last Will and Testament.

SECTION II DECLARATION OF SOUND HEALTH AND TESTAMENTARY CAPACITY

I hereby declare that I am executing this Will in sound disposing mental faculties, memory, and understanding. I fully comprehend and appreciate the nature, extent, and value of all my movable and immovable properties, and the natural claims of those persons who are the objects of my affection and bounty.

SECTION III DECLARATION OF ABSOLUTE SELF-ACQUIRED PROPERTIES & TITLE

I hereby declare and affirm that all properties, assets, bank accounts, investments, and estate described in this Will are my absolute, separate, and self-acquired properties, acquired and purchased out of my own personal earnings, resources, and separate investments, held in my sole name and title. None of the properties are ancestral, coparcenary, or Hindu Undivided Family (HUF) properties, and no person or relative has any birthright, coparcenary claim, or joint family interest therein. Pursuant to Section 30 of the Hindu Succession Act, 1956 and the Indian Succession Act, 1925, I hold full, absolute, and unfettered testamentary power to bequeath and dispose of the same according to my sole wishes.

SECTION IV APPOINTMENT & OPERATIONAL POWERS OF EXECUTOR

I hereby nominate, constitute, and appoint **Suresh Sharma (Brother), S/o Late Shri Kailash Sharma, aged about 52 years, residing at Flat 201, Srinivasa Towers, Street No. 3, Habsiguda, Hyderabad, Telangana 500007** as the sole Executor of this my Last Will and Testament. In the event that **Suresh Sharma** is unable, unwilling, or predeceases me, I hereby nominate and appoint **Rajesh Kumar (Close Friend / Advisor), S/o Shri R.P. Kumar, aged about 49 years, residing at House No. 12-5-84/2, Vijayapuri Colony, Tarnaka, Secunderabad, Telangana 500017** as the Alternate Executor of this Will with identical powers and duties.

I expressly confer upon my Executor full administrative powers to:

• **(a) Possession & Custody:** Take custody, charge, and possession of all my movable and immovable assets, title deeds, bank accounts, and lockers;

• **(b) Representation & Mutation:** Represent my estate before all Banks, Depository Participants, Asset Management Companies, Sub-Registrars, Housing Societies, and Revenue Authorities, and execute all necessary transfer deeds, mutation applications, discharges, and conveyance instruments;

• **(c) Statutory Debt Settlement Priority:** Discharge and pay all legitimate liabilities, funeral costs, and administrative charges strictly in the statutory order of priority mandated by the Indian Succession Act, 1925: first, funeral and death-bed expenses (Section 320); second, expenses of obtaining probate and administering the estate (Section 321); third, wages due for services rendered within three months preceding my demise to any labourer, artisan, or domestic servant (Section 322); fourth, all other enforceable debts and liabilities paid rateably according to their applicable legal priorities (Sections 323 & 325), payable first out of the residuary estate or available unencumbered liquid funds, with the legal rights of secured creditors preserved, prior to the distribution of specific bequests;

• **(d) Statutory Tax Obligations:** Comply with applicable income-tax laws, prepare and file my final Income Tax Returns (ITR), handle estate tax assessments, and discharge all outstanding tax liabilities of the estate;

• **(e) Realisation & Conveyances:** Execute all formal conveyances and transfer instruments to vest title in the designated beneficiaries in accordance with this Will; distribute securities in kind where practicable, or sell and realise non-divisible fractional holdings at fair market value and distribute the net proceeds in the specified proportions (34:33:33); and realise, sell, or lease assets strictly where necessary to discharge enforceable estate debts or statutory liabilities;

• **(f) Compromise of Claims:** Compound, compromise, abandon, or submit to arbitration all debts, claims, or accounts relating to my estate, and appoint legal advocates or attorneys for any of the aforesaid purposes; provided that the executor acts honestly and prudently in the best interests of the estate, maintains proper written records, and does not compromise or abandon substantial claims without recorded reasons;

• **(g) Expense Reimbursement:** Be reimbursed from the estate for all actual and reasonable out-of-pocket legal, travel, and administrative expenses properly incurred in the discharge of duties, without personal profit or remuneration;

• **(h) Encumbrance Liability:** Any specific property bequeathed subject to an existing mortgage, charge, or loan shall pass to the respective beneficiary subject to such liability in proportion to their shares, without personal recourse against other beneficiaries, unless covered and discharged by an active loan-protection or mortgage-redemption insurance policy;

• **(i) Court Authority & Probate:** Apply for Probate of this Will before a Court of competent jurisdiction if deemed necessary or required by any institution (or, in the event that no named Executor is able or willing to act, for any beneficiary to apply for Letters of Administration with the Will annexed).

SECTION V SCHEDULE OF BEQUEST OF ASSETS & BENEFICIARY ALLOCATIONS

I hereby bequeath, devise, and distribute all my specified movable and immovable assets to the designated beneficiaries in the exact proportions set forth below:

Asset #1 [Bank Account / FD]: State Bank of India (SBI) Savings Account ending in 4521, Hitec City Branch, Hyderabad (Savings Account No. ending in 4521 & all sole Fixed Deposits held with the bank, or any renewed/successor accounts) Branch (Approx Value: ₹35,00,000)

- **34% Absolute Share** Bequeathed forever to **Sunita Sharma (Spouse)** [Aadhaar Card: Ending in XXXX-9182]
- **33% Absolute Share** Bequeathed forever to **Aarav Sharma (Son)** [PAN Card: Ending in XXXX-812B]
- **33% Absolute Share** Bequeathed forever to **Ananya Sharma (Daughter)** [Aadhaar Card: Ending in XXXX-4567]

Asset #2 [Property / Land]: Residential Flat / Apartment (Flat 402, 4th Floor, Sai Balaji Residency, Madhapur, Super Built-up Area: 1,450 sq ft (UDS: 42 sq yds), Regd. Sale Deed No. 4521/2018 dated 14/06/2018 at SRO Serilingampally, Bounded N: Open Driveway, S: Flat 401, E: Corridor, W: Compound Wall, Hyderabad) (Approx Value: ₹1,20,00,000)

LIFELONG RESIDENTIAL PROTECTION FOR SPOUSE (SUNITA SHARMA):
The bequests of the undivided 33% shares to my son Aarav Sharma and my daughter Ananya Sharma are expressly made subject to, encumbered by, and subordinate to the prior, irrevocable **PERSONAL LIFE RIGHT OF RESIDENCE AND OCCUPATION** hereby granted in favor of my spouse, **SUNITA SHARMA**, in the whole of the said residential flat for her natural lifetime:

• **(i) Undisturbed Possession:** Sunita Sharma shall have the peaceful, undisturbed right to reside in, occupy, and use the said residential flat along with such family members as she desires during her natural lifetime, free from any eviction, interference, or demand for occupational charges or rent by the co-owners or any person claiming under them.

• **(ii) Protection of Possession & Alienation Subject to Life Right:** During the lifetime of Sunita Sharma, neither Aarav Sharma nor Ananya Sharma shall be entitled to seek partition, separate possession, or physical division of the flat. Any sale, mortgage, or transfer of an undivided share by any co-owner shall be strictly subject to, encumbered by, and subordinate to Sunita Sharma's lifelong residence right.

• **(iii) Outgoings & Upkeep:** Routine monthly society maintenance charges, municipal property taxes, and utility bills during her occupation shall be paid out of my residuary estate (and if residue is exhausted, shared by the co-owners in proportion to their ownership shares 34:33:33), while major structural and capital repairs shall be borne by the co-owners in proportion to their ownership shares (34% by Sunita, 33% by Aarav, 33% by Ananya).

• **(iv) Voluntary Sale & Substitute Accommodation Guarantee:** In the event that the flat is sold during her lifetime with Sunita Sharma's express prior written consent, the net sale proceeds shall be applied first and foremost to acquire an equivalent substitute residential flat (in which Sunita Sharma shall hold an identical lifelong right of residence, with remainder ownership vested in the co-owners in the proportions 34:33:33), and only the surplus sale proceeds, if any, shall be distributed among the co-owners in proportion to their shares.

• **(v) Vesting of Remainder Interest (Section 119 ISA):** The remainder ownership shares of Aarav Sharma and Ananya Sharma vest immediately upon my demise under Section 119 of the Indian Succession Act, 1925, but their right to physical partition or separate possession is postponed until the demise of Sunita Sharma or her voluntary surrender of her residence right by registered deed. If either child predeceases Sunita after surviving me by thirty (30) days, their vested remainder interest shall pass to their surviving lineal descendants per stirpes (or their legal heirs).

- **34% Absolute Share** Bequeathed forever to **Sunita Sharma (Spouse)** [Aadhaar Card: Ending in XXXX-9182]
- **33% Absolute Share** Bequeathed forever to **Aarav Sharma (Son)** [PAN Card: Ending in XXXX-812B]
- **33% Absolute Share** Bequeathed forever to **Ananya Sharma (Daughter)** [Aadhaar Card: Ending in XXXX-4567]

Asset #3 [Mutual Funds / Stocks]: Zerodha Broking Ltd (CDSL DP ID: 12081600) Investment Holding (Account/Client: BO ID: 12081600-04521892 (Trading Client Code: ZR4521, covering all equity shares, ETF units, and mutual fund folios)) (Approx Value: ₹45,00,000)

- **34% Absolute Share** Bequeathed forever to **Sunita Sharma (Spouse)** [Aadhaar Card: Ending in XXXX-9182]
- **33% Absolute Share** Bequeathed forever to **Aarav Sharma (Son)** [PAN Card: Ending in XXXX-812B]
- **33% Absolute Share** Bequeathed forever to **Ananya Sharma (Daughter)** [Aadhaar Card: Ending in XXXX-4567]

SURVIVORSHIP & ANTI-LAPSE CLAUSE (30-DAY RULE):
If any named beneficiary predeceases me, or fails to survive me by a period of thirty (30) clear consecutive calendar days following my demise, the share bequeathed to such deceased beneficiary (including any share in the residuary estate) shall not lapse, but shall devolve per stirpes by representation across successive generations: that is, equally among their surviving children, with the surviving lineal descendants of any deceased child taking that deceased child's share by representation, provided that such substitute descendants also survive me by thirty (30) consecutive calendar days. In the event that a deceased beneficiary leaves no surviving lineal descendants who survive me by thirty (30) days, their share shall be divided equally among the remaining surviving named beneficiaries of this Will.

ULTIMATE CHARITABLE FALLBACK (PREVENTION OF INTESTACY):
If, upon application of all preceding survivorship, substitution, and anti-lapse provisions, no named beneficiary or qualifying lineal descendant survives the Testator by thirty (30) consecutive calendar days, then my entire net estate (after discharge of all enforceable debts, taxes, and testamentary expenses) shall devolve upon the **PRIME MINISTER'S NATIONAL RELIEF FUND (PMNRF)**, Government of India (administered by the Prime Minister's Office, South Block, New Delhi), for charitable public relief purposes. In the event that PMNRF is unable to accept the bequest or has ceased to exist, the net estate shall devolve upon the **PM CARES FUND** (Prime Minister's Citizen Assistance and Relief in Emergency Situations Fund), New Delhi, as named alternative charitable recipient; and in the further event that both are unavailable, to the **INDIAN RED CROSS SOCIETY (National Headquarters, New Delhi)**, to the absolute exclusion of any intestate succession.

TESTAMENTARY TRUST & MINORITY PROTECTION:
If any beneficiary or substitute descendant entitled to any share or property under this Will is a minor (under the age of 18 years) at the time of distribution:
• **(a) Appointment of Testamentary Trustee:** Their share shall be held in trust by my spouse, **SUNITA SHARMA**, as Primary Testamentary Trustee (and Natural Guardian strictly in respect of her own minor children).
• **(b) Successor Trustees:** In the event that Sunita Sharma predeceases me, dies during the administration of the trust, resigns, or becomes incapable of acting, my brother **SURESH SHARMA** shall act as Substitute Testamentary Trustee; and failing him, a Trustee appointed by unanimous written agreement of all adult beneficiaries (or by a Court of competent jurisdiction under the Indian Trusts Act, 1882) shall act as Successor Trustee.
• **(c) Administration & Statutory Protection:** The Trustee shall hold and administer the minor's property without remuneration, keeping separate trust bank accounts and annual books of account. The Trustee shall have power: (i) to invest liquid funds prudently in scheduled bank fixed deposits or central/state government securities; (ii) in respect of any undivided share in immovable property or securities, to hold, manage, and vote such share and receive rental or dividend income, provided that all dealings with a minor's immovable property shall strictly comply with applicable law and court permissions under Section 8 of the Hindu Minority and Guardianship Act, 1956; and (iii) to apply the net income and, if strictly necessary for the minor's benefit, reasonable portions of the corpus exclusively for the minor's education, healthcare, maintenance, and welfare.
• **(d) Termination & Vesting at Majority:** Upon the minor attaining the age of eighteen (18) years, the entire remaining trust property, together with all accumulated income and interest (less documented minor-related expenses), shall be transferred and delivered to such beneficiary absolutely.

SECTION VI NOMINATION DIRECTIVE & BENEFICIAL OWNERSHIP

I hereby declare and direct that any nomination registered in respect of my bank accounts, Fixed Deposits, Demat accounts, shares, mutual funds, or other financial assets is made solely for institutional transmission and procedural

discharge under applicable banking and company regulations. Pursuant to the law laid down by the Supreme Court of India in Shakti Yezdani v. Jayanand Jayant Salgaonkar (2023) and Ram Chander Talwar v. Devender Kumar Talwar (2010), any nominee receiving funds or securities holds the same strictly as a trustee and custodian for the beneficial owners designated under this Will. It is my express testamentary direction that the entire beneficial ownership and title to all such assets shall devolve strictly and exclusively upon the beneficiaries named herein, subject always to applicable statutory enactments without purporting to override any beneficial entitlement expressly conferred by law.

SECTION VII RESIDUARY ESTATE CLAUSE

Any other real, personal, movable, or immovable property, bank accounts, investments, jewellery, digital assets, vehicles, insurance proceeds, or claims whatsoever belonging to me at the time of my death not specifically mentioned herein shall be divided equally among my designated beneficiaries: **Sunita Sharma** (Spouse), **Aarav Sharma** (Son), **Ananya Sharma** (Daughter), subject to the anti-lapse provision above.

SECTION VIII EXCLUSION OF UNINTENDED HEIRS & THIRD PARTIES

Having carefully considered and provided for my beloved family in accordance with my judgment, I hereby declare that no other relative, heir, or third party shall have any claim, title, or interest whatsoever in my estate save as expressly bequeathed under this Will, to the maximum extent permitted by law.

EXECUTION IN WITNESS WHEREOF

I, the said **Ramesh Sharma**, having understood and approved this Will, have hereunto set my hand and affixed my signature to this my Last Will and Testament on this **30 October 2026** at **Hyderabad**, India.

_____

Signature / Mark of Testator

Name: Ramesh Sharma

LEFT THUMB IMPRESSION (LTI)

(Affix in indelible ink)

ATTESTATION ATTESTATION BY TWO INDEPENDENT WITNESSES

Signed, acknowledged, published, and declared by the Testator as and for his Last Will and Testament, in the presence of us, who at his request, in his presence, and in the presence of each other, all being present at the same time, have subscribed our names as attesting witnesses. Each of us confirms that we witnessed the Testator sign this Will, or personally received his personal acknowledgment of his signature, and that we have each subscribed our signatures in the Testator's presence. We affirm that we are of legal age (18+ years), of sound mind, and are NEITHER beneficiaries NOR spouses of beneficiaries under this Will.

WITNESS 1

Signature: _____

Full Name: _____

Father's / Spouse's Name: _____

Permanent Address: _____

Phone / Aadhaar / PAN: _____

Date: 30 October 2026

WITNESS 2

Signature: _____

Full Name: _____

Father's / Spouse's Name: _____

Permanent Address: _____

Phone / Aadhaar / PAN: _____

Date: 30 October 2026